



DECISION

Complaint No. : POS/9329/2023/HYD/575

Name and address of the complainant : Mr. Junaid Khan S/o. Muhammad Javed,
R/o. House No. 04, Muhalla Staff Colony, Central Jail,
Hyderabad.

Name of the Agency Complained against : Inspector General of Sindh, Prisons & Corrections Services,
Karachi

Name & Designation of Investigating Officer : Syed Muhammad Sajjad Hyder, Regional Director,
Regional Office, Hyderabad.

Vetted by : **Muhammad Naseer Jamali, Advisor-N**

Subject : COMPLAINT ALLEGING NON-APPOINTMENT OF
COMPLAINANT AS PRISON HEAD CONSTABLE AGAINST
SHAHEED QUOTA

Complaint

Mr. Junaid Khan filed a complaint dated 10.11.2023 wherein he stated that his late father, named Muhammad Javed Fareed Tanoli was serving as Prison Head Constable, posted at Central Prison, Hyderabad. He was murdered on 09.02.2013 while performing official duty at Jail Ward of Liaquat Medical University Hospital Hyderabad. At that time, all his children were below the age of 18 years. Subsequently, he applied for the post of Prison Head Constable during the year-2019 against shaheed quota. He was appointed as Prison Constable against deceased quota vide order dated 07.08.2019 instead of Prison Head Constable against Shaheed Quota. Being aggrieved, he solicited intervention of this Institution.

Proceedings

2. The complaint was admitted for investigation u/s 10 (3) of the Establishment of the office of Ombudsman for the Province of Sindh Act, 1991 (amended up to date) subject to submission of mandatory documents and by condoning the delay.
3. This office issued a notice vide letter dated 11.12.2023 to the Deputy Inspector General of Prisons, Hyderabad Region and Superintendent Central Prison, Hyderabad for report, who in response informed vide letter dated 28.12.2023 that matter pertains to Prisons Inspectorate Office, Karachi. Accordingly, this office issued a notice dated 10.01.2024 to the Inspector General of Sindh, Prisons and Correction Service, Karachi for report. In response, the Assistant Director (Admn) Inspector General of Sindh, Prisons C.S, Karachi informed vide letter dated 18.01.2024 that the post of Head Constable Prison is a promotion post and can only be filled through promotion. Therefore, the complainant was appointed as Prison Constable instead of Head Constable Prison during the year 2019 against deceased quota. The complainant vide rejoinder dated 29.02.2024 refuted the version of the agency and stated that his father was a Shaheed, not a deceased employee.

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4. The case was heard on various dates. The agency submitted subsequent report vide letter dated 24.11.2025 wherein the same position was shared as mentioned in para-3 above. The agency further informed that the rules for Shaheed Recognition & Compensation have not so far been notified by the Government of Sindh. The perusal of file revealed that the Prison Department did not issue any order declaring the late father of the complainant as Shaheed.

Findings

5. The complainant has been appointed as Prison Constable against deceased quota in pursuance to the relevant rules. The request of the complainant for appointment as Prison Head Constable cannot be accepted being a promotion post.

Decision

6. In view of the above and in exercise of powers vested in me under section 11 of Establishment of the office of the Ombudsman for the Province of Sindh, 1991 (amended upto date), the complaint is disposed of as redressed to the extent of service rules for appointment against deceased quota. The request of the complainant for appointment as Prison Head Constable is rejected in the light of existing laws/rules of the department.

Given under my hand and seal of office.



Sd /-
(MUHAMMAD SOHAIL RAJPUT)
Sitara-e-Imtiaz. PAS
Ombudsman Sindh

Karachi, dated 11-11 February, 2026

